

The Goa State Commission for Backward Classes Rules, 1997

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State of Goa - Act

The Goa State Commission for Backward Classes Rules, 1997

GOA

India

The Goa State Commission for Backward Classes Rules, 1997

Rule THE-GOA-STATE-COMMISSION-FOR-BACKWARD-CLASSES-RULES-1997 of 1997

Published on 5 February 1997

Commenced on 5 February 1997

[This is the version of this document from 5 February 1997.]

[Note: The original publication document is not available and this content could not be verified.]

The Goa State Commission for Backward Classes Rules, 1997

Published vide Notification No. 13/6/93-SWD, dated 5th February 1997

13.

/6/93-SWD. - In exercise of the powers conferred by sub-section (1) of section 17 of the Goa State Commission for Backward Classes Act, 1993 (Act 13 of 1993), the Government of Goa hereby makes the following rules, namely:-

1.

Short title and commencement.

(1)

These rules may be called the Goa State Commission for Backward Classes Rules, 1997.

(2)

They shall come into force from the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires-

(a)

"Act" means the Goa State Commission for Backward Classes Act, 1993 (Act 13 of 1993);

(b)

"Section" means a section of the Act.

(c)

Words and phrases used but not defined herein shall have the same meaning as assigned to them under the Act.

3.

Salaries and allowances and other terms and conditions of service of Chairperson and Members of the Commission.

(1)

The Chairperson of the Commission, if appointed on whole time basis shall receive a consolidated salary of [Rs. 25000/-]

[Substituted by the Amendment Rules 2010]

per month and if appointed on honorary basis an honorarium of Rs. 200/- per day for the sittings. Other members, if sitting on whole time basis, shall receive a consolidated salary of Rs. 5000/- per month and if sitting on part time basis, an honorarium of [Rs. 500/-]

[Substituted by the Amendment Rules 2010]

per day for the sitting.

(2)

The Chairperson appointed on whole time basis, shall be provided with a vehicle with a ceiling of [200]

[Substituted by the Amendment Rules 2010]

litres of petrol per month and if appointed on honorary basis, shall be paid Rs. 1000/- per month as conveyance allowance. Other members appointed on whole time or honorary basis, shall be entitled to TA/DA as admissible to Grade I Government Officers, for attending the Commission's meetings.

(3)

The Chairperson appointed on whole time basis, shall be provided with one telephone each at his office and his residence without STD and if appointed on honorary basis, shall be paid telephone allowance of Rs. 500/- per month. The members shall be paid telephone allowance of [Rs. 500/-]

[Substituted by the Amendment Rules 2010]

per month.

(4)

The Chairperson and the Members of the Commission shall be entitled for such travelling allowance and daily allowances on official tour as are admissible to Grade I Officers of the Government.

4.

Salaries, allowances and other terms and conditions of service of the Member Secretary.

(1)

The Member Secretary of the Commission shall be paid a [special pay of Rs. 2000/-]

[Substituted by the amendment Rules 2010]

per month for discharging the duties of the Commission. The important administrative matters of the Commission shall be placed before the Member Secretary who may pass the general or specific orders on such matters. He shall be responsible for preparation of the agenda for each meeting of the Commission and shall exercise all administrative and financial powers in connection with day to day affairs of the Commission.

(2)

The Member Secretary shall be the appointing and disciplinary authority for the employees of the Commission. Any appeal from any order of the Member Secretary shall lie to the Commission. The Member Secretary shall also be the controlling authority in respect of service matters of the employees of the Commission.

5.

The appointment, salaries, allowances and terms and conditions of the staff of the Commission.

(1)

The salaries and allowances of the staff appointed for the office of the Commission shall be on par with those of other Government employees of respective category. Similarly, the recruitment rules for the recruitment of staff for the Commission shall be the same as are applicable to different categories. The Commission may appoint, the staff of various categories from other Government Departments on deputation basis and they shall be Governed by the General Rules of deputation. The TA/DA shall be paid to the staff of the Commission for official tour on par with other Government employees of the same category.

(2)

For recruitment, confirmation, promotion and all allied matters relating to the service of the staff, the composition of the DPC/DSC shall be as under:-

1.

Member Secretary

.... Chairman

2.

Director of Social Welfare

.... Member

3.

A Co-opted member to be nominated by the Member Secretary

.... Member

6.

Annual statement of accounts and annual report.

- The Commission shall maintain the annual statement of account as per the statement appended to these Rules in Form "A" The form in which the annual report is to be prepared shall be as per Form "B" appended hereto. [The Form in which the balance sheet is to be prepared shall be as per Form "C" appended hereto.]

[Inserted vide Notification No. 13/6/93-SWD/1137 dated 24-06-2002 published in the Official Gazette, Series I No. 17 dated 26-07-2002.]

The Commission shall prepare its annual report which shall be submitted to the Government in the forms mentioned above in the month of April of succeeding year.

Form - A

Appendix - A

Accounts of the Goa State Commission for Backward Classes

(See Rule 6)

Receipts and Payment Account of the Goa State Commission for Backward Classes for the Year ending 31st March

(Rupees)

{|

|-

| Receipt

| Amount (Year)

| Payment

| Amount (Year)

|-

| Opening Balance

(i)

Cash in

hand

(ii)

Cash in

Bank

Grant-in-aid from the Government

(i)

Plan

Recurring

Non-Recurring

(ii)

Non-plan

Recurring

Non-Recurring

A. Plan

(i)

Recurring

Investments

(i)

Face value

of investments encashed

(ii)

Interest

on investments

(iii)

Interest

on Bank Account and short terms Deposits

(3)

Recovery of Contingent Advance

(i)

Advance to

CPWD

(ii)

Advances

to DGS & D

(iii)

Advances

to Suppliers

(iv)

Other

Advances

(4)

Other Deposits

(i)

Security

Deposit

(ii)

Earnest

Money Deposit

(C)

Remittance Receipts

(i)

GPF/CPF

etc. recoveries from deputationists

(ii)

Licence

Fee

(iii)

Income

Tax

- (iv)
Central
Govt. Health Scheme
- (v)
Postal
Life Insurance
- (vi)
Central
Govt. Employee's Group Insurance Scheme
- (ii)
Non-Recurring
- (B)
Non-Plan
- (i)
Recurring
- (ii)
Non-Recurring
- (a)
Revenue Receipts
Other Receipts
- (i)
Miscellaneous Receipts
- (ii)
Fees if
any, charged by the Commission
- (iii)
Sale of
Publications
- (b)
Debt/ Deposit Receipts
Provident Fund/ Other Contributions
- (1)
General
Provident Fund
- (a)
Subscription
- (b)
Recovery
of Advance
- (c)
Interest
- (2)
Contributory Provident Fund
- (a)
Subscription
- (b)
Recovery
of Advance
- (c)
Contribution
- (d)

Interest

(3)

Group

Insurance Scheme

(a)

Insurance

Fund

(b)

Saving

Fund

Recovery of Advances

(i)

House

Building Advance

(ii)

Motor Car

Advance

(iii)

Other

Motor Conveyance Advance

(iv)

Other Advances

|

| A. Plan Expenditure

I. Recurring

(a)

Establishment Charges

1. Salaries

(Chairperson & Members of the Commission including Honorarium
& Allowances to co-opted Members)

2. Salaries

(Officers & Establishment)

3. Wages

4. Payment for

professional and special services

5. Travel

Expenses

15.

Other

Charges

16.

Litigation

(C)

Provident Fund/Other

Contributions

1. Pensions &

Gratuities (including commutation of pension and LSPC)

2.

Contribution CPF

3. Deposit

Linked Insurance Scheme

4. Interest on
CPF
5. CPF
Advance/Withdrawal/Final Payment
6. Investment
of CPF Balances
7.
Interest on
GPF
8.
GPF
Advance/Withdrawal/Final Payment
9.
Investment
of GPF Balances
10.
Investment
of Balances of Group Insurance
11.
Payment to
GIC for Insurance cover
(D)
Assistance to other
Organisations
1. Special
Studies
2. Promotional
and Educational Research
- (b)
Other Establishment Charges
1. Office
Expenses
2. Rent, Rates
and Taxes
3.
Publications
4.
Advertisement & Publicity
5. Hospitality
Expenses
6. Minor Works
7. Furniture
and Fixtures
8. Machinery &
Equipment
9. Motor
Vehicles
10.
Maintenance of Vehicles
11. Petrol,
Oil and Lubricants

12.
Conference
& Seminars
13. Telephone
Charges
- (e)
Investments
1. Investments
- (f)
Contingent Advances
1. Advance to
CPWD
2. Advance to
DGS & D
3. Advances to
Suppliers
4. Other
Advances
- (g)
Advances to Staff
1. House
Building Advance
2. Motor Car
Advance
3. Other Motor
Conveyance Advance
4. Other
Advance
- (h)
Other Adjustments (Remittances)
1. GPF etc.
recoveries of deputationists
2. Licence Fee
3. Income Tax
4. Central
Govt. Health Scheme
5. Postal Life
Insurance
6.
CGEGIS/CGEIS
- A. II. Non-Recurring
- (a)
Other
Establishment Charges
1. Major Works
2. Furniture &
Fixture
3. Machinery &
Equipment
4. Motor
Vehicles

5.

Publications

(b)

Deposits

1. Security

Deposits

2. Earnest

Money Deposits

B. Non-plan Expenditure

1. Recurring

2.

Non-Recurring

C. Closing Cash Balance

1. Cash in

Hand

2. Cash in Bank

|

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Form - B

Appendix - B

Goa State Commission for Backward Classes Income and Expenditure Accounts for the Year ended 31st March.

Expenditure

Amount (Year)

Income

Amount (Year)

Plan

Recurring

Establishment Charges

(1) Salaries

(Chairperson and Members of the Commission including Honorarium
and Allowances to Co-opted Members)

(2) Salaries

(Officers and Establishment)

(3) Wages

(4) Payment

for Professional and Special Services

(5) Travel

Expenses

(c) Provident Fund & Other

Contributions

1. Pensions

and gratuities (including Commuted value of Pension & LSPC)

2.

Contribution to CPF

3. Deposit

Linked Insurance Scheme

4. Interest on

CPF

5. Interest on

GPF

6. Group

Insurance Scheme

(a) Insurance

Fund

(b) Saving

Fund

(d) Assistance to other
organisations

1. Special

Studies

2. Promotional

and Educational Research

II. Non-plan

Recurring

Excess of

Income over expenditure

(b) Other Establishment Charges

(1) Office

Expenses

(2) Rent,

Rates and Taxes

(3)

Advertisement & Publicity

(4)

Hospitality Expenses

(5)

Publications

(6) Minor

Works

(7) Furniture

& Fixtures

(8) Machinery

& Equipment

(9) Motor

Vehicles

(10)

Maintenance of Vehicles

(11) Petrol,

Oil & Lubricants

(12)

Conference & Seminars

(13) Telephone

Charges

(14) Other

Charges

(15) Litigation

Plan

A. Grant-in-aid from Government

Less: Amount of Grant-in-aid

capitalised

B. Receipt on account of Interest

(i) Interest

on Investment

(ii) Interest

on Bank Account and short term deposits

C. Other Receipts

(i)

Miscellaneous receipts

(ii) Fees, if

any, charged by the Commission

Sale of Publications

Non-plan

Excess of Expenditure over Income

[Form - C]

[Inserted vide Notification No. 13/6/93-SWD/1137 dated 24-06-2002 published in the Official Gazette, Series I No. 17 dated 26-07-2002.]

Goa State Commission for Backward Classes

Behind Old G.M.C. Campus,

Opp. R.M.O.S. Hostel, Panaji-Goa

Balance Sheet as at 31st March

Appendix - C

Liabilities

Amount (Year)

Assets

Amount (Year)

Corpus Fund

Fixed Assets

Motor Vehicle

Revenue Fund

Machinery & Equipment

Furniture

Current Assets

Telephone deposit

Cash at bank

Cash in hand

TOTAL:

TOTAL:

Order

Local Administration and Welfare Department

Sub: Backward Classes-Declaration of

DF-1-SCT-64-LAWD-1. - The Government of Goa, Daman and Diu, after taking into account the Educational and Social conditions of people belonging to various communities in Goa, Daman and Diu, declares the following Communities as socially and educationally backward for the purpose of Art. 15(4) and backward for the purpose of Art. 16(4) of the Constitution:

1. Kunbis
2. Gawdas
3. Dhangars
4. Velips

DF-1-SCT-64-LAWD. - Whereas the Government of Goa, Daman and Diu is of the opinion that the Backward Classes as notified under Order No. DF-1-SCT-64-LAWD-I, dated 29th July, 1980 are not adequately represented in the Government service.

Now, therefore, the Government of Goa, Daman and Diu hereby directs that 2% of the total number of vacancies in the Government service shall be reserved for filling up by candidates belonging to Backward Classes declared under Order

No. DF-1-SCT-64-LAWD-I, dated 29-7-1980.

Sub: Backward Classes-Reservation of vacancies

DF-1-SCT-64-LAWD. - Read Government Order No. DF-1-SCT-64-LAWD dated 29-7-1980.

The above Government Order published in Extraordinary Official Gazette No. 17, Series I dated 29-7-1980 shall take effect from the date of receipt of concurrence from the Government of India.

Local Administration and Welfare Department

Sub: Backward Classes- Reservation of vacancies

DF-1-SCT-64-LAWD. - Read Government Order No. DF-1-SCT-64-LAWD dated 29-7-1980.

The Government Order No. DF-1-SCT-64-LAWD dated 8-9-1980 published in the Official Gazette, Series I No. 25 dated 18-9-1980 is hereby cancelled and order of even number dated 29-7-1980 shall come into force with immediate effect.

Power, Supply and Welfare Department

13.

-3-84/LAWD/OBC. - The Government of Goa after taking into account the educational and social conditions of people belonging to various communities in Goa, declares the following three communities as socially and educationally backward for the purpose of Art. 15(4) and backward for the purpose of Art. 16(4) of the Constitution:

1. Gaudas

2. Velips

3. Dhangars

The Government of Goa hereby directs that 2% of the total number of vacancies in the Government shall be reserved for filling up by the above mentioned communities.

This supersedes Government Order No. DF-1-SCS-64-LAWD-I dated 29-7-1980.

Power, Supply and Welfare Department

13.

-3-84/LAWD/OBC. - The Government of Goa hereby amends the Government Order No. 13-3-84/LAWD/ /OBC dated 12-6-87 published in the Official Gazette, Series I No. 12, dated 18-6-1987 (hereinafter referred to as the "principal Order"), as follows:-

In the principal Order, after item 3, the following item shall be inserted, namely:-

"4. Kunbis"

Notifications

13.

-1-97-SWD. - Read: 1. Government order No. 13-3-84-LAWD/OBC dated 12-6-1987 and 9-7-1987.

2. Government of India, Ministry of Welfare Resolution No. 12011/44/96-BCC dated 6-12-1996 published in the Gazette of India No. 210 dated 11-12-1996.

The Government of Goa, after taking into account the Resolution cited above issued by the Government of India, Ministry of Welfare on the recommendations of the National Commission for Backward Classes, have decided to notify inclusion of the below mentioned Communities in the State list of O. B. Cs with immediate effect.

1. Dhobi, Rajak, Madval (including Christian Dhobies).

2. Nhavi, Nai, Nabhik, Napit, Mahalo.

3. Koli, Kharvi (including Christian Kharvi).

4. Nathjogi.

5. Gosavi.

Department of Social Welfare

Directorate of Social Welfare

13.

-1-97/SWD/1016. - Read: (1) Government Order No. 13-3-84-LAWD/OBC dated 12-6-1987 and 9-7-1987.

(2)

Notification No. 13/1/97-SWD dated 3-3-1997.

(3)

Notification No. 13/1/97-SWD dated 13-5-1997.

(4)

Notification No. 13/1/97-SWD dated 12-12-1997.

(5)

Notification No. 13/1/97-SWD/2122 dated 23-9-1998.

(6)

Notification No. 13/25/92-SWD-Part dated 4-10-1995.

The Government of Goa, after taking into account the Resolution dated 27-10-1999 and 6-12-1999 of the Ministry of Social Justice and Empowerment, Government of India, published in the Gazette of India/Extraordinary, Part-I section 1 dated 27-10-1999 and 6-12-1999, respectively and further, on the recommendations of the Goa State Other Backward Classes Commission hereby notifies inclusion of below mentioned communities in the State list of OBC.

(1)

Kumbhar including Christian Kumbhar.

(2)

Teli.

(3)

Shimpi.

(4)

Christian Mahar.

(5)

Kalaikar/Blacksmith/Tinsmith.

(6)

Pagui/Gabit.

(7)

Christian Barber.

(8)

Satarkar.

(9)

Bhandari Naik.

The Government is also pleased to notify that the existing reservation percentage for OBC Communities notified vide Government Orders and Notifications cited above, for direct recruitment, for service under State Government and State Undertakings, shall be increased from 15%; to 27%; with immediate effect. The roster points for OBC in 100 point roster will be 5, 8, 11, 15, 17, 21, 25, 29, 35, 39, 43, 47, 53, 55, 57, 61, 65, 69, 71, 73, 77, 79, 83, 87, 91, 95, 99 (27 points).

This reservation will, however, not be available to persons falling within the "creamy layer", the criteria for which, is as specified by the Government Notification No. 13/25/92-SWD-PART dated 4-10-1995.

This Notification shall come into force with immediate effect.

Department of Social Welfare

13.

-1-97/SWD. - Read: 1. Government Order No. 13-3-84-LAWD/OBC dated 12-6-1987 and 9-7-1987.

2. Government Notification No. 13/1/97-SWD dated 3-3-1997.

The Government of Goa after taking into account the educational and social backwardness of Bhandari Community, is pleased to notify inclusion of Bhandari community in the State list of O.B.Cs with immediate effect.

Department of Social Welfare

13.

/1/97/SWD/2122. - Whereas vide Notification No. 13/1/97-SWD dated 12-12-1997, published in the Official Gazette, Series I No. 37 dated 15th December, 1997 (thereinafter called the "said Notification"), the Government had notified inclusion of Bhandari Community in the State list of O.B.C.;

And whereas the said Notification was challenged before the High Court of Bombay at Panaji in Writ Petition No. 288/1998.

And whereas the Hon'ble High Court vide Oral Order dated 24-8-1998 in said Writ Petition No. 288/1998, stayed the said Notification.

And whereas the High Court has also made it clear that whatever has already been done under the said Notification shall not be disturbed and the stay shall take effect from 24-8-1998.

Now, therefore, the Government hereby directs that the said Notification shall be held in abeyance with effect from

24-8-1998 until further orders.

Social Welfare Department

13.

-2-84/SWD/I. - Whereas the Government of Goa vide Orders No. 13-3-84/LAWD/OBC dated 12-6-87 and 9-7-1987 has notified four communities viz. Kunbi, Gawda, Dhangar and Velip as Other Backward Classes under articles 15(4) and 16(4) of the Constitution of India;

And whereas the Government of Goa have decided that 5% of the total number of seats to be filled in the Government professional institutions and 2% of the total number of vacancies in Government service shall be reserved for being filled up by the candidates belonging to the above other backward classes.

Now therefore, the Government of Goa hereby fixes the points Nos. 7 and 57 in the 100 Point Roster for filling up the posts reserved for the other backward classes.

Department of Social Welfare

13.

/1/96-SWD. - Government is pleased to relax the upper age limit prescribed for direct recruitment by 3 years in respect of candidates belonging to Other Backward Classes to fill up the vacancies reserved for them. Government is also pleased to provide relaxation of Standard in written examination and interview to fill up the quota reserved for Other Backward Classes.

This will come into effect immediately and will be applicable to all Government Departments, State owned undertakings and Organisations/Institutions wherever reservation is applicable.

Department of Social Welfare

13.

/8/91/SWD/Part/2008. - Government of Goa, after considering the inclusion of various Communities in the State list of Other Backward Classes, is pleased to prescribe the following guidelines as regards the issue of O.B.C. certificate:

Claims Through Marriages:

The guiding principle is that no person who was not Other Backward Class by birth will be deemed to be a member of Other Backward Class merely because he or she married a person belonging to Other Backward Class.

Similarly a person who is a member of Other Backward Class would continue to be a member of that Other Backward Class even after his or her marriage with a person who does not belong to a Other Backward Class.

Department of Social Welfare

No. 13/25/92-SWD/Part. - Read: 1. Government Order No. 13/3/84-LAWD/OBC dated 12-6-87 and 9-7-1987.

2. Notification No. 13/2/84-SWD-I dated 8-2-1988.

Pursuant to Supreme Court judgement in the Indira Sawney and others Vs Union of India and others case [Writ Petition (Civil) No. 930 of 1990] the Government of Goa is pleased to adopt the same criteria evolved by the Government of India vide Office Memorandum No. 36012/22/93-Estt. (SCT) dated 8-9-1993 of the Ministry of Personnel Public Grievances & Pension (Department of Personnel & Training), New Delhi for exclusion of socially advanced persons/Sections ("Creamy Layer") from Other Backward Classes, as per the Schedule appended hereto.

The said criteria will be initially applicable to the four Communities notified vide Government order cited at Sr. No. 1 above. The percentage of reservation shall continue to remain the same as notified vide notification cited at Sr. No. 2 above until further orders.

The said criteria shall be applicable for reservation to vacancies in civil posts and services in all Government Departments, Public Sector Undertakings, Autonomous Bodies, Universities in Goa State.

Schedule

Sr. No.

Description of category

To whom rule of exclusion will apply

1

2

3

I.

Constitutional Posts

Son(s) and daughter(s) of

- (a) President of India;
- (b) Vice-President of India;
- (c) Judges of the Supreme Court and of the High Courts;
- (d) Chairman & Members of UPSC and of the State Public Service Commission; Chief Election Commissioner Comptroller & Auditor General of India;
- (e) persons holding Constitutional positions of like nature.

II.

Service Category

A. Group A/Class I Officers of the All India Central and State Services (Direct Recruits)

Son(s) and daughter(s) of

- (a) parents, both of whom are Class I Officer;
- (b) parents, either of whom is a Class I Officers;
- (c) parents, both of whom are Class I Officers, but one of them dies or suffers permanent incapacitation;
- (d) parents, either of whom is a Class I Officer and such parent dies or suffers permanent incapacitation, and before such death or such incapacitation has had the benefit of employment in any International Organisation like UN, IMF, World Bank, etc., for a period of not less than 5 years;
- (e) parents, both of whom are Class I Officers die or suffer permanent incapacitation and before such death or such incapacitation of the both, either of them has had the benefit of employment in any International Organisation like UN, IMF, World Bank, etc. for a period of not less than 5 years:

Provided that the rule of exclusion shall not apply in the following cases:

(a) Sons and daughters of parents either of whom or both of whom are Class-I Officers and such parent(s) dies/die or suffer permanent incapacitation.

(b) A lady belonging to OBC

Category has got married to a Class-I Officer, and may herself like to apply for a job.

B. Group B/Class II Officers of the Central and State Services (Direct Recruitment)

Son(s) and daughter(s) of

- (a) parents, both of whom are Class II Officers.
- (b) parents of whom only the husband is a Class II Officer and he gets into

Class I at the age of 40 or earlier.

(c) parents,

both of whom are Class II Officers and one of them dies or suffers permanent incapacitation and either one of them has had the benefit of employment in any International Organisation like UN, IMF, World Bank, etc. for a period of not less than 5 years before such death or permanent incapacitation.

(d) parents of

whom the husband is a Class I Officer (direct recruit or preferty promoted) and the wife is a Class II Officer and the wife dies; or suffers permanent incapacitation and

(e) parents,

of whom the wife is a Class I Officer (Direct Recruit or preferty promoted) and the husband is a Class II Officer and the husband dies or suffers permanent incapacitation:

Provided that the rule of exclusion

shall not apply in the following cases :

Sons and daughters of

(a) Parents

both of whom are Class II Officers and one of them dies or suffers permanent incapacitation.

(b) Parents, both of whom are

Class II Officers and both of them die or suffer permanent incapacitation, even though either of them has had the benefit of employment in any International Organisation like UN, IMF, World Bank, etc. for a period of not less than 5 years before their death or permanent incapacitation.

C. Employees in Public Sector Undertaking etc

The criteria enumerated in A & B above in this Category will apply mutatis mutandi to Officers holding equivalent or comparable posts in PSUs, Banks Insurance Organisations, Universities, etc. and also to equivalent or Comparable posts and positions under private employment, pending the evaluation of the posts on equivalent or comparable basis in these institutions, the criteria specified in Category VI below will apply to the Officers in these Institutions.

III.

Armed Forces Including Para-Military Forces (Persons holding civil posts are not included)

Son(s) and daughter(s) of parents

either or both of whom is or are in the rank of Colonel and above in the Army and to equivalent posts in the Navy and the Air Force and the Para Military Forces:

Provided that:-

(i) if the

wife of an Armed Forces Officer is herself in the Armed Forces

(i.e., the category under consideration) the rule of exclusion will apply only when she herself has reached the rank of Colonel;

(ii) the

service ranks below Colonel of husband and wife shall not be clubbed together;

(iii) if the wife of an Officer in the Armed Forces is in civil employment, this will not be taken into account for applying the rule of exclusion unless she falls in the service category under item No. II in which case the criteria and conditions enumerated therein will apply to her independently.

IV.

Professional Class and Those Engaged in Trade and Industry
Criteria specified against Category

VI will apply:-

(I) Persons

engaged in profession as a doctor, lawyer, Chartered Accountant, Income-Tax consultant, financial or management consultant dental surgeon, engineer, architect, computer specialist, film artists and other film professional, author, playwright sports person, sports professional, media professional or any other vocations of like status.

(II) Persons

engaged in trade, business and industry.

Criteria specified against Category

VI will apply:

Explanation:

(i) Where the

husband is in some profession and the wife is in a Class II of lower grade employment, the income/wealth test will apply only on the basis of the husband's income.

(ii) If the wife is in any

profession and the husband is in employment in a Class II or lower rank post, than the income/wealth criterion will apply only on the basis of the wife's income and the husband's income will not be clubbed with it.

V.

Property Owners

(A) Agricultural holdings

Son(s) and daughter(s) of persons

belonging to a family (father, mother and minor children) which owns

(a) only

irrigated land which is equal to or more than 85% of the statutory ceiling area, or

(b) both

irrigated and unirrigated land, as follows:

The rule of exclusion will apply

where the pre-condition exists that the irrigated area (having been brought to a single type under a common denominator) 40% or more of the statutory ceiling limit for irrigated land (this being calculated by excluding the unirrigated portion). If this pre-condition of not less than 40% exists, then only the area of unirrigated land will be taken into account. This will be done by converting the unirrigated land on the basis of the conversion formula existing, into the irrigated type. The irrigated area so

computed from unirrigated land shall be added to the actual area of irrigated land and if after such clubbing together the total area in terms of irrigated land is 85% or more of the statutory ceiling limit for irrigated land, then the rule of exclusion will apply and disentitlement will occur).

(ii) The rule of exclusion will not apply if the land holding of a family is exclusively unirrigated.

B. Plantations

(i) Coffee, tea, rubber etc.

(ii) Mango, citrus, apple plantations etc.

Criteria of income/wealth specified

in Category VI below will apply.

Deemed as agricultural holding and hence criteria at A, above under this Category will apply.

C. Vacant land and/or building in urban areas or urban agglomerations

Criteria specified in Category VI below will apply.

Explanation: Building may be used for residential, industrial or commercial purpose and the like two or more such purposes.

VI.

Income/wealth Test

Son(s) and daughter(s)

(a) Persons

having gross annual income of Rs. 1 lakh above or possessing wealth above the exemption limit as prescribed in the Wealth Tax Act for a period of three consecutive years.

(b) Persons in

Categories I, II, III and V A who are not disentitled to the benefit of reservation but have income from other sources of wealth which will bring them within the income-wealth criteria mentioned in (a) above.

Explanation :

(i) Income

from salaries or agricultural land shall not be clubbed;

(ii) The

income criteria in-terms of rupee will be modified taking into account the change in its value every three years. If the situation, however so demands, the interrunnum may be less.

Explanation :Wherever the expression "permanent incapacitation" occur in this schedule, it shall mean incapacitation which results in putting an officer out of service.

Department of Social Welfare

Directorate of Social Welfare

No. 13/13/2003-SWD/7430. - Read : 1. Order No. 13-3-84-LAWD/OBC dated 12-06-1987.

2. Addendum No. 13/1/97-SWD/(Vol.III) dated 06-12-2001

3. Order No. 13-3-84-LAWD/OBC dated 09-07-1987.

4. Notification No. 13/1/97-SWD dated 03-03-1997

5. Notification No. 13/1/97-SWD/1016 dated 30-06-2000.

6. Corrigendum No. 13/14/90-SWD/(Vol.III) dated 22-04-2003.

The Government of Goa, after taking into account the education and Social conditions of the people belonging to various Communities in Goa and further on the recommendation of the Goa State Commission backward Classes, hereby notifies the following two communities as socially and educationally backward for the purpose of Article 15(4) and backward for the purpose of Article 16(4) of the Constitution and include in the State List of OBC Community:-

i. Thakar

ii. Vishwakarma/Chari/Mesta

Department of Social Welfare

Directorate of Social Welfare

No. 13/13/2003-SWD/7430. - Read : 1. Order No. 13-3-84-LAWD/OBC dated 12-06-1987.

2. Addendum No. 13/1/97-SWD/(Vol.III) dated 06-12-2001

3. Order No. 13-3-84-LAWD/OBC dated 09-07-1987.

4. Notification No. 13/1/97-SWD dated 03-03-1997

5. Notification No. 13/1/97-SWD/1016 dated 30-06-2000.

6. Corrigendum No. 13/14/90-SWD/(Vol.III) dated 22-04-2003.

7. Notification No. 13/13/2003-SWD/7430 dated 29-12-2006.

The Government of Goa, after taking into account the education and Social conditions of the people belonging to various Communities in Goa and further on the recommendation of the Goa State Commission backward Classes, hereby notifies the following two communities as socially and educationally backward for the purpose of Article 15(4) and backward for the purpose of Article 16(4) of the Constitution and include in the State List of OBC Community:-

i. Christian Renders;

ii. Kamarpant.

Related AI tags, queries and research notes

Translation